

2:00 PM

LINE: 3

24-CIV-03087

DANAE MURRAY VS. GOOGLE, LLC

DANAE MURRAY
GOOGLE, LLC

NATHANIEL MARANWE
FELICIA A DAVIS

DEFENDANT GOOGLE, LLC'S MOTION TO COMPEL (1) FURTHER RESPONSES TO ITS DOCUMENT DEMANDS AND (2) RESPONSES TO ITS FORM INTERROGATORIES

TENTATIVE RULING:

For the reasons stated below, Defendant Google LLC ("Google")'s motion for an order compelling further responses to Google's Request for Production of Documents, Set One is **GRANTED IN PART** and **DENIED IN PART**.

The motion as to Google's Form Interrogatories – Employment Law, Set One and Form Interrogatories – General, Set One, is **DENIED AS MOOT**.

BACKGROUND

This is an employment action alleging that Plaintiff's employer, Defendant Google LLC, violated the California Fair Employment and Housing Act and the Equal Pay Act by paying Plaintiff less than white and male colleagues for substantially equal or substantially similar work.

The Court notes that the discovery process has been arduous. After more than one informal discovery conference, Defendant filed the instant motion to compel. Trial is currently set for October 12, 2026.

Defendant seeks three forms of relief:

(1) an order compelling Plaintiff to respond to Form Interrogatories—Employment Law, Set One, and Form Interrogatories—General, Set One;

(2) an order compelling Plaintiff to comply with the Court's October 27, 2025 discovery order by amending her responses to address asserted deficiencies and supplementing her document production accordingly; and

(3) an order deeming Plaintiff's objections to Google's Request for Production of Documents, Set One, waived.

As relevant here, on March 30, 2026, the parties filed a stipulation providing that Plaintiff would not seek emotional distress damages. Plaintiff agreed "to drop and not pursue further any claim for emotional distress damages, including garden variety emotional distress damages, and will not ask the jury or court to award her any damages related to emotional distress at trial." (Stipulation filed Mar. 30, 2026, ¶ 1.) In return, "Plaintiff shall not have to respond to any discovery requests seeking her medical records or medical information." (Id., ¶ 3.)

Defendant's notice of non-opposition states that Plaintiff's withdrawal of her emotional distress claim obviates the need to respond to discovery seeking medical records or medical information, including the form interrogatories that are the subject of the motion. The Court agrees. Accordingly, the request to compel verified responses to Form Interrogatory—Employment Law No. 212.0, concerning Plaintiff's claimed physical, emotional, or mental injuries, and Form Interrogatory—General No. 10.0, concerning medical history, is **DENIED AS MOOT**.

The remaining issue is Defendant's request for further responses to requests for production that are not limited to medical records, medical information, or emotional distress damages. The motion is unopposed.

LEGAL STANDARD

Unless otherwise limited by court order, any party may obtain discovery regarding any nonprivileged matter that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter is itself admissible or appears reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.010.)

On receipt of a response to an inspection demand, the demanding party may move for an order compelling a further response if the demanding party contends that: (1) a statement of compliance is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or (3) an objection is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).)

A party who fails to timely respond to an inspection demand waives objections, including objections based on privilege or work product, unless the court grants relief from waiver. (Code Civ. Proc., § 2031.300, subd. (a).)

DISCUSSION

The Court has reviewed Defendant's separate statement and the specific requests for production at issue. Plaintiff did not file an opposition. The record reflects multiple informal discovery conferences and ongoing deficiencies in Plaintiff's discovery responses, as set forth in the Declaration of defense counsel Eric D. Distelburger. (Distelburger Decl., ¶¶ 3–22.) The declaration also reflects that Plaintiff failed to timely respond to Defendant's requests for production and interrogatories. (Id., ¶¶ 4, 5, 7, 16–18, 21–22.) In addition, Plaintiff's counsel has repeatedly failed to respond to defense counsel's emails. (Id., ¶¶ 5, 13, 17, 19, 22.) Plaintiff also failed to appear for her scheduled deposition without notice to Defendant. (Id., ¶ 23.)

The Court addresses the requests for production as follows.

RPD No. 14

RPD No. 14 seeks all personal or business calendars, journals, diaries, notebooks, logs, appointment books, or similar documents from May 20, 2020, to the present. Defendant requests an order requiring Plaintiff to identify whether she has additional responsive documents and to identify by Bates number the documents already produced in response to this request.

The motion is **GRANTED IN PART** and **DENIED IN PART** as to RPD No. 14. Plaintiff shall provide a further verified response identifying whether she has additional responsive documents and identifying by Bates number the documents already produced in response to this request. However, information specifically referencing medical records, medical information, or emotional distress damages may be redacted or withheld consistent with the parties' March 30, 2026 stipulation.

RPD Nos. 1–68

Defendant identifies the following deficiencies in Plaintiff's responses:

Deficiency	Document Demand Nos.
Failure to affirm a diligent search and reasonable inquiry have been made.	Nos. 1, 10, 15, 16, 24, 59, and 67
Failure to identify whether responsive documents are being withheld.	Nos. 2-9, 11-13, 17-23, 25-58, 60-66, and 68
Failure to properly identify responsive documents.	Nos. 2-9, 11-13, 17-66, and 68
Waiver of objections	Nos. 1-68

The motion is ruled on as follows:

- As to RPD Nos. 1, 10, 15, 16, 24, 59, and 67, the motion is **GRANTED**. Plaintiff shall provide further verified responses stating that she made a diligent search and reasonable inquiry in an effort to comply.
- As to RPD Nos. 1, 10, 15, 16, 24, 59, and 67, the motion is **GRANTED**. Plaintiff shall provide further verified responses identifying whether she is withholding any documents responsive to Google's requests.
- As to RPD Nos. 2–9, 11–14, 17–66, and 68, the motion is **GRANTED IN PART** and **DENIED IN PART**. Plaintiff shall provide further verified responses identifying, by Bates number, all documents responsive to Google's requests. The motion is denied as to RPD Nos. 5 and 6 to the extent those requests seek medical records, medical information, or emotional distress damages subject to the parties' March 30, 2026 stipulation.
- As to RPD Nos. 1–68, Defendant's request to deem Plaintiff's objections waived is **GRANTED IN PART** and **DENIED IN PART**. Plaintiff's objections are deemed waived except as to requests seeking medical records, medical information, or emotional distress damages covered by the March 30, 2026 stipulation. The stipulation applies, at minimum, to the following requests or portions of requests:
 - RPD No. 5: documents supporting damages or relief, including emotional damages;
 - RPD No. 6: medical, psychological, or counseling reports, bills, notes, and any signed medical release;

- RPD No. 60: documents supporting Plaintiff's allegation of stress or embarrassment;
- RPD No. 61: documents supporting Plaintiff's allegation concerning fear of retaliation, including awareness through a survey; and
- RPD No. 62: documents supporting Plaintiff's allegation that therapy sessions addressed work-related harm.

Plaintiff shall serve further verified responses and produce all responsive, nonprivileged documents consistent with this ruling.

If this tentative ruling is uncontested, it shall become the order of the Court. Counsel for Defendant shall prepare a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall give notice of ruling as required by law.

2:00 PM

LINE: 4

24-CIV-03087

DANAE MURRAY VS. GOOGLE, LLC

**DANAE MURRAY
GOOGLE, LLC**

**NATHANIEL MARANWE
FELICIA A DAVIS**

DEFENDANT GOOGLE, LLC'S MOTION FOR TERMINATING SANCTIONS OR, IN THE ALTERNATIVE, MONETARY SANCTIONS

TENTATIVE RULING:

For the reasons stated below, the motion for terminating sanctions, or alternatively monetary sanctions, is **DENIED**.

Code of Civil Procedure section 2023.030 identifies the types of discovery sanctions available, including monetary, issue, evidence, and terminating sanctions, but such sanctions must be authorized by the chapter governing the particular discovery method or by a failure to obey a discovery order. Here, Defendant has not identified a specific statutory provision authorizing terminating sanctions. To the extent Defendant argues that Plaintiff failed to comply with a court order compelling further discovery responses, the record does not support that assertion. Defendant relies on the minutes from the Informal Discovery Conferences held on October 27, 2025, and December 1, 2025, but those minutes reflect only the parties' informal agreement; they do not constitute a court order compelling discovery.